

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 8, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ELTON EALY v. GENERAL MOTORS, LLC
Case No. CU25-03660**

Demurrer to First Amended Complaint

TENTATIVE RULING

On its own motion the court continues this matter to September 11, 2026 at 9:00 A.M. in Department 3.

**OWENS v. FLANDEZ
Case No. CU25-07041**

Motion to Compel Plaintiff's Deposition Attendance, Testimony, and Document Production, and Request for Monetary Sanctions

TENTATIVE RULING

The Motion is GRANTED as follows:

(1) Plaintiff and Cross-Defendant JEREMY OWENS ("Plaintiff ") shall appear for an in-person deposition no later than 15 calendar days from the date of this Order;

(2) Plaintiff's in-person deposition shall proceed at Emerick & Finch Court Reporters, located at 2333 San Ramon Valley Blvd #425, San Ramon, California;